Solicitation/Contract/Order for Commercial Products and Commercial Services

Offeror to Complete Blocks 12,17,23,24, & 30

1. REQUISITION NUMBER: 0020154948
2. CONTRACT NUMBER:
3. AWARD/EFFECTIVE DATE:
4. ORDER NUMBER:
5. SOLICITATION NUMBER: 70B06C26Q00000082
6. SOLICITATION ISSUE DATE: 04/16/2026
7. FOR SOLICITATION INFORMATION CALL: a. NAME: Crockett, John; b. EMail: JOHN.T.CROCKETT@CBP.DHS.GOV
8. OFFER DUE DATE/LOCAL TIME: 06/09/2026 2:00PM ET

9. ISSUED BY CODE 7014

DHS - Customs & Border Protection
Mission Support Contracting Division
1300 Pennsylvania Ave, NW

Washington DC 20229

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE : 100 % FOR:

☒ SMALL BUSINESS
☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
☐ HUBZONE SMALL BUSINESS
☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
☐ 8(A)

NAICS: 332994
SIZE STANDARD: 1000 EMPLOYEES

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE
12. DISCOUNT TERMS
13a. ☐ THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)
13b. RATING
14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☒ RFP

15. DELIVER TO CODE

16. ADMINISTERED BY CODE

DHS - Customs & Border Protection
Mission Support Contracting Division
1300 Pennsylvania Ave, NW

Washington DC 20229

17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE

TELEPHONE NO.

18a. PAYMENT WILL BE MADE BY CODE

US Customs and Border Protection

FAD Mail Stop 203-V
8899 E. 56th Street
Indianapolis IN 46249

17b. ☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER.

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED. ☒ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
10	IDIQ M4-Style Rifle Platform				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN.

☐ 29. AWARD OF CONTRACT: REFERENCE ________ OFFER DATED ________ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: ________

30A. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER *(TYPE OR PRINT)*

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER *(TYPE OR PRINT)*

31c. DATE SIGNED

CONTRACT NUMBER	REQUISITION NUMBER	AWARD/EFFECTIVE DATE
	0020154948	

ADDITIONAL INFORMATION:

The Law Enforcement Safety and Compliance Directorate (LESC), U.S. Customs and Border Protection (CBP), and the Department of Homeland Security (DHS), intends to solicit proposals in response to Request For Proposal (RFP) 70B06C26Q00000082 for M4 rifles and parts. The Government intends to make a single indefinite delivery/indefinite quantity (IDIQ) contract award resulting from this solicitation. However, the Government reserves the right to make additional awards if it would be in the Government's best interest. The anticipated contract will be issued with a five (5) year ordering period.

All salient characteristics and terms are defined in the attached statement of work (SOW), which is included with this RFP. The RFP is issued as a Small Business Set Aside. The associated North American Industry Classification System (NAICS) code is 332994, (Small Arms, Ordnance, and Ordnance Accessories Manufacturing), is determined to be appropriate for this effort.

Potential offerors MUST register at https://sam.gov in order to receive notification and/or changes to the solicitation.

All interested parties must be registered in System for Award Management (SAM) pursuant to applicable regulations and guidelines prior to award. Registration information can be found at https//sam.gov.

32a. QUANTITY IN COLUMN 21 HAS BEEN
☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (Print)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT (Location)	
		42c. DATE RECEIVED (MM/DD/YYYY)	42d. TOTAL CONTAINERS

TABLE OF CONTENTS

Table of Contents

SECTION I SCHEDULES

I.1 DESCRIPTION: This acquisition will be conducted using the Federal Acquisition Regulation (FAR) Parts 12 (Acquisition of Commercial Items) and 15 (Contracting by Negotiation). This solicitation will result in a single award indefinite delivery/indefinite quantity (ID/IQ) contract for the U.S. Customs and Border Protection (CBP) rifles and rifle parts contract.

In response to Executive Order 14275, Restoring Common Sense to Federal Procurement, signed April 15, 2025, the Department of Homeland Security (DHS) has implemented the Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) through a series of class deviations. DHS Class Deviations are publicly available at https://www.dhs.gov/cpo-dhs-far-overhaul-deviations, and have been applied to this contract. Any updates to the FAR made pursuant to the RFO and subsequently adopted by DHS via class deviation, at or before the time of award, shall be deemed adopted and become the controlling and applicable clauses for this contract.

I.2 MINIMUM GUARANTEE: The minimum guarantee of the contract is $10,000.00 (any combination of the items listed on Attachment 2 - Pricing Schedule).

I.3 MAXIMUM AMOUNT: The maximum amount of supplies that may be ordered over the life of the anticipated contract will not exceed a total of $49,900,000.00 (inclusive of all anticipated delivery orders combined).

I.4 SCHEDULE OF SUPPLIES/SERVICES: See Attachment 2 (Pricing Schedule) for pricing information.

I.5 PERIOD OF PERFORMANCE: The period of performance of the anticipated contract is date of award through 60 months from date of award (5 years total). Delivery orders (DOs) may have a period of performance of 12 months beyond the last day of the contract's period of performance. A DO may be placed against the anticipated contract on or before the last day of the contract's period of performance.

I.6 OBLIGATION: The anticipated contract does not obligate any funding. The individual DOs placed against the contract will obligate the funding. Initial delivery order equal or in excess of the minimum guarantee of the contract ($10,000.00) will be issued at the same time as the IDIQ award.

I.7 TYPES OF DELIVERY ORDERS: Any DOs awarded as a result of the anticipated contract shall be awarded on a firm fixed price (FFP) basis. Delivery order payments are authorized via both purchase (P) card and the traditional delivery order process. This will be a DHS Strategic Sourcing Vehicle. See section II.8 for a list of authorized Agencies allow to issue DOs.

I.8 ORDERING PROCEDURES – SUPPLIES (AUG 2020): Any supplies and services to be furnished under the anticipated contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Vendor shall accept orders using Government Purchase Cards without additional fees or charges. All delivery orders issued under the anticipated contract shall conform to the provisions of the contract clauses, “Ordering,” FAR 52.216-18 and “Order Limitations,” FAR 52.216-19.

The only office(s) authorized to issue delivery orders under this contract are:

DHS Component	Abbreviation
U.S Customs and Border Protection	CBP
Other DHS Components or Non-DHS Agencies	TBD

I.9 FPAS RATED: Delivery orders under this ID/IQ may include a priority rating under the Federal Priorities and Allocations System (FPAS) regulation (15 C.F.R. § 700) and FAR Subpart 11.6, Priorities and Allocations. Anyone receiving a FPAS rated order is required to follow all provisions of the FPAS regulations. The priority rating will be provided on the SF 1449 in Box 13a and 13b or on page 2 of the OF347when the delivery orders are issued.

SECTION II CONTRACT CLAUSES

II.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): www.acquisition.gov

(End of clause)

II.2 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021)

II.3 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

II.4 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)

II.5 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)

II.6 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from TBD through TBD.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered ‘‘issued’’ when –

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or

(3) If sent electronically, the Government either --

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor’s email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

II.7 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than $1,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor--

(1) Any order for a single item in excess of $10,000,000.00;

(2) Any order for a combination of items in excess of $49,900,000.00; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

II.8 ORDERING PROCEDURES - SUPPLIES (AUG 2022)
Orders for supplies to be furnished under this contract shall be accomplished by the issuance of written delivery orders specifying the types and quantities of supplies to be ordered and include an approval by email to order off the contract from the Contract Specialist/Contracting Office. Vendor shall accept orders using Government Purchase Cards without additional fees or charges. All delivery orders issued under this contract shall conform to the provisions of the contract clause, "Ordering," FAR 52.216-18, and "Order Limitations," FAR 52.216-19.

Agencies and Abbreviations

DHS Component	**Abbreviation**
U.S. Customs and Border Protection	CBP
US Secret Service	USSS
Immigration and Customs Enforcement	ICE
US Coast Guard	USCG
US Marshal Service	USMS
Other Federal Agencies	TBD

(End of Supplementary terms and Conditions)

II.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any *Department of Homeland Security Acquisition Regulation (HSAR)* (48 CFR *30*) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

II.10 3052.212-70 CONTRACT TERMS AND CONDITIONS APPLICABLE TO DHS ACQUISITION OF COMMERCIAL ITEMS (JUL 2023)

The Contractor agrees to comply with any provision or clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial items or components. The provision or clause in effect based on the applicable regulation cited on the date the solicitation is issued applies unless otherwise stated herein. The following provisions and clauses are incorporated by reference:

[The Contracting Officer should either check the provisions and clauses that apply or delete the provisions and clauses that do not apply from the list. The Contracting Officer may add the date of the provision or clause if desired for clarity.]

(a) Provisions.

[ ] 3052.216-70 Evaluation of Offers Subject to An Economic Price Adjustment Clause.

[ ] 3052.219-72 Evaluation of Prime Contractor Participation in the DHS Mentor Protégé Program.

[ ] 3052.247-70 F.o.B. Origin Information.

[ ] Alternate I

[ ] Alternate II

[ ] 3052.247-71 F.o.B. Origin Only.

[X] 3052.247-72 F.o.B. Destination Only.

(b) Clauses.

[X] 3052.203-70 Instructions for Contractor Disclosure of Violations.

[] 3052.204-71 Contractor Employee Access.

[] Alternate I

[] Alternate II

[] 3052.204-72 Safeguarding of Controlled Unclassified Information.

[] Alternate I

[] 3052.204-73 Notification and Credit Monitoring Requirements for Personally Identifiable Information Incidents.

[X] 3052.205-70 Advertisement, Publicizing Awards, and Releases.

[ ] Alternate I

[ ] 3052.209-72 Organizational Conflicts of Interest.

[ ] 3052.209-73 Limitation on Future Contracting.

[ ] 3052.215-70 Key Personnel or Facilities.

[ ] 3052.216-71 Determination of Award Fee.

[ ] 3052.216-72 Performance Evaluation Plan.

[ ] 3052.216-73 Distribution of Award Fee.

[ ] 3052.219-71 DHS Mentor Protégé Program.

[ ] 3052.228-70 Insurance.

[ ] 3052.236-70 Special Provisions for Work at Operating Airports.

[X] 3052.242-72 Contracting Officer’s Representative.

(End of clause)

II.11 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (AUG 2025)(DEVIATION 25-19)

(a) *Definitions*. As used in this clause–

Commercial and Government Entity code means–

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location (referred to as “CAGE code”); or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency to entities located outside the United States and its outlying areas that the DLA CAGE Branch records and maintains in the CAGE master file (referred to as “NCAGE code”).

Unique Entity Identifier (UEI) means an identifier used to identify a specific commercial, nonprofit, or Government entity.

(b) *Active registration*.

(1) The Contractor shall maintain an active Federal Government contracts registration in the System for Award Management (SAM) at https://www.sam.gov during contract performance and through final payment under this contract. To maintain an active registration in SAM, the Contractor shall review at least annually its registration in SAM and validate that the information is current, accurate, and complete.

(2) The Contractor is responsible for the currency, accuracy, and completeness of the information provided within SAM, and for any liability resulting from the Government’s reliance on inaccurate or incomplete information. Updating SAM does not alter the terms and conditions of this contract and is not a substitute for a properly executed contractual document.

(c) *Novation and change-of-name agreements*.

(1) If the Contractor has legally changed its business name or “doing business as” name (whichever is shown on the contract), or has transferred the assets used to perform the contract, but has not completed the necessary requirements regarding novation and change-of-name agreements in part 42 of the Federal Acquisition Regulation (FAR), the Contractor shall provide the responsible Contracting Officer a minimum of one business day’s written notification of its intention to–

(i) Change the legal business name in SAM;

(ii) Comply with the requirements of FAR part 42; and

(iii) Agree in writing to the timeline and procedures specified by the responsible Contracting Officer. The Contractor shall provide with its written notification sufficient documentation to support the legally changed name.

(2) If the Contractor fails to comply with the requirements of paragraph (c)(1) of this clause, or fails to perform the agreement at paragraph (c)(1)(iii) of this clause, and, in the absence of a properly executed novation or change-of-name agreement, the SAM information that shows the Contractor to be other than the Contractor indicated in the contract will be considered to be incorrect information within the meaning of the “Suspension of Payment” paragraph of the electronic funds transfer (EFT) clause of this contract.

(d) *Assignees*.

(1) The Contractor shall not change the legal business name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims (see FAR part 32). Assignees shall be separately registered in SAM.

(2) Information provided to the Contractor’s SAM record that indicates payments, including those made by EFT, to an ultimate recipient other than that Contractor will be incorrect information within the meaning of the “Suspension of Payment” paragraph of the EFT clause of this contract.

(e) *Unique entity identifier (UEI).* The Contractor shall ensure that its UEI is maintained throughout the life of the contract.

(f) *Commercial and Government Entity (CAGE) code*. The Contractor shall ensure that the CAGE code is maintained throughout the life of the contract. To update a CAGE code, the Contractor shall initiate the change by updating its SAM registration.

(g) *Communicating changes*. The Contractor shall communicate any change to its UEI or CAGE code to the Contracting Officer within 30 days after the change, so a modification can be issued to update the UEI or CAGE code on this contract. A change in the UEI does not necessarily require a novation.

(End of clause)

II.12 52.209-6 PROTECTING the GOVERNMENT'S INTEREST WHEN SUBCONTRACTING with CONTRACTORS DEBARRED, SUSPENDED, PROPOSED for DEBARMENT, or VOLUNTARILY EXCLUDED (NOV 2025)(DEVIATION 25-27)

(a) *Definition*. As used in this clause–

Commercially available off-the-shelf (COTS) item

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” in Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

(b) *The Government suspends or debars Contractors to protect the Government's interests*. Other than a subcontract for a commercially available off-the-shelf item, the Contractor shall not enter into any subcontract, in excess of the threshold specified in FAR 9.405-2(b) on the date of subcontract award, with a Contractor that is debarred, suspended, or proposed for debarment by any executive agency unless a compelling reason exists to do so.

(c) The Contractor shall require each proposed subcontractor whose subcontract will exceed the threshold specified in FAR 9.405-2(b) on the date of subcontract award, other than a subcontractor providing a commercially available off-the-shelf item, to disclose to the Contractor, in writing, whether as of the time of award of the subcontract, the subcontractor, or its principals, is or is not debarred, suspended, proposed for debarment, or voluntarily excluded by the Federal Government.

(d) A corporate officer or a designee of the Contractor shall notify the Contracting Officer, in writing, before entering into a subcontract with a party (other than a subcontractor providing a commercially available off-the-shelf item) that is debarred, suspended, proposed for debarment, or voluntarily excluded (see FAR 9.404 for information on the System for Award Management (SAM) Exclusions). The notice must include the following:

(1) The name of the subcontractor.

(2) The Contractor’s knowledge of the reasons for the subcontractor being listed with an exclusion in SAM.

(3) The compelling reason(s) for doing business with the subcontractor notwithstanding its being listed with an exclusion in SAM.

(4) The systems and procedures the Contractor has established to ensure that it is fully protecting the Government's interests when dealing with such subcontractor in view of the specific basis for the party's debarment, suspension, proposed debarment, or voluntary exclusion.

(e) *Subcontracts*. Unless this is a contract for the acquisition of commercial products or commercial services, the Contractor shall include the requirements of this clause, including this paragraph (e) (appropriately modified for the identification of the parties), in each subcontract that–

(1) Exceeds the threshold specified in FAR 9.405-2(b) on the date of subcontract award; and

(2) Is not a subcontract for commercially available off-the-shelf items.

(End of clause)

II.13 52.209-10 PROHIBITION on CONTRACTING with INVERTED DOMESTIC CORPORATIONS (NOV 2025)(DEVIATION 25-27)

(a) *Definitions*. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned–

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) If the contractor reorganizes as an inverted domestic corporation or becomes a subsidiary of an inverted domestic corporation at any time during the period of performance of this contract, applicable law may prohibit the Government from paying for Contractor activities performed after the date when it becomes an inverted domestic corporation or subsidiary. The Government may seek any available remedies in the event the Contractor fails to perform in accordance with the terms and conditions of the contract as a result of Government action under this clause.

(c) Exceptions to this prohibition are located at 9.108-3.

(d) In the event the Contractor becomes either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation during contract performance, the Contractor shall give written notice to the Contracting Officer within five business days from the date of the inversion event.

(End of clause)

II.14 52.212-4 CONTRACT TERMS AND CONDITIONS–COMMERCIAL PRODUCTS and COMMERCIAL SERVICES (AUG 2025) (DEVIATION 25-21)

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights –

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment*. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall –

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice*. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any

United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment* –

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall –

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the –

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if –

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss*. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes*. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

II.15 52.219-6 NOTICE of TOTAL SMALL BUSINESS SET-ASIDE (OCT 2025)(DEVIATION 26-03)

(a) *Definition*. Small business concern, as used in this clause–

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the size standards in this solicitation.

(2) Affiliates, as used in paragraph (a)(1) of this clause, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for small business concerns; and

(2) Orders set aside for small business concerns under multiple-award contracts as described in 8.4 and 16.5.

(c) *General*.

(1) Offers are solicited only from small business concerns. Offers received from concerns that are not small business concerns shall be considered nonresponsive and will be rejected.

(2) Any award resulting from this solicitation will be made to a small business concern.

(End of clause)

II.16 52.219-14 LIMITATIONS on SUBCONTRACTING (OCT 2025)(DEVIATION 26-03)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition*. *Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that–

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to–

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors*. An independent contractor shall be considered a subcontractor.

By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for–

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated

entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause–

[Contracting Officer check as appropriate.]

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[X] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

II.17 52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (OCT 2025)(DEVIATION 26-03)

(a) *Definitions*. As used in this clause–

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern–

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition–

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it □ is, □ is not a small business concern under NAICS Code _____ assigned to contract number _____.

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause*.] The Contractor represents that it □ is, □ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* __.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* __ .]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it □ is, □ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]*

(6) HUBZone joint venture eligible under the HUBZone Program.[*Complete only if the offeror is a HUBZone small business concern*.] The offeror represents, as part of its offer, It □ is, □ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.*] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [*Contractor to sign and date and insert authorized signer's name and title*.______________________]

(End of clause)

II.18 52.219-33 NONMANUFACTURER RULE (OCT 2025) (DEVIATION 26-03)

(a) *Definitions*. As used in this clause–

Manufacturer means the concern that transforms raw materials, miscellaneous parts, or components into the end item. Concerns that only minimally alter the item being procured do not qualify as manufacturers of the end item. Concerns that add substances, parts, or components to an existing end item to modify its performance will not be considered the end item manufacturer, where those identical modifications can be performed by and are available from the manufacturer of the existing end item.

Nonmanufacturer means a concern, including a supplier, that provides an end item it did not manufacture, process, or produce.

(b) *Applicability*.

(1) This clause does not apply to contracts awarded pursuant to the unrestricted portion of a partial set-aside or to a contractor that is the manufacturer of the product or end item.

(2) This clause applies to–

(i) Contracts that have been awarded pursuant to a set-aside for any of the small business concerns identified in 19.000(a)(3);

(ii) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(iii) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business under multiple-award contracts, as described in 8.4 and 16.5;

(iv) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts as described in 8.4 and 16.5; and

(v) Contracts using the HUBZone price evaluation preference to award to a HUBZone concern unless the Contractor waived the evaluation preference.

(c) *Requirements*.

(1) The Contractor shall–

(i) Provide an end item that a small business has manufactured, processed, or produced in the United States or its outlying areas; for kit assemblers who are nonmanufacturers, see paragraph (c)(2) of this clause instead;

(ii) Be primarily engaged in the retail or wholesale trade and normally sell the type of item being supplied; and

(iii) Take ownership or possession of the item(s) with its personnel, equipment, or facilities in a manner consistent with industry practice; for example, providing storage, transportation, or delivery.

(2) When the end item being acquired is a kit of supplies, at least 50 percent of the total cost of the components of the kit shall be manufactured, processed, or produced in the United States or its outlying areas by small business concerns.

(End of clause)

II.19 52.223-23 SUSTAINABLE PRODUCTS (OCT 2025) (DEVIATION 26-12)

(a) *Definitions*. As used in this clause–

Sustainable product means–

(1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products).

(2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (https://www.energy.gov/eere/femp/search-energy-efficient-products , https://www.energystar.gov/products?s=mega , and https://www.energy.gov/femp/low-standby-power-product-list).

(3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program 7 U.S.C. 8102) (7 CFR Part 4270) (https://www.biopreferred.gov/).

(4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables).

(b) *Requirements*. The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are–

(1) Delivered to the Government;

(2) Furnished for use by the Government;

(3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of clause)

II.20 52.225-1 BUY AMERICAN-SUPPLIES (OCT 2025) (DEVIATION 26-09)

(a) *Definitions*. As used in this clause–

Commercially available off-the-shelf (COTS) item–

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into an end product.

Cost of components means–

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the end product (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the end product.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Domestic end product means–

(1) For an end product that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured end product mined or produced in the United States;

(ii) An end product manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds __ percent of the cost of all its components. *[Contracting officer to insert the percentage.]*. Components of foreign origin of the same class or kind as those that the agency determines are not mined, produced, or manufactured in sufficient and reasonably available commercial quantities of a satisfactory quality are treated as domestic. Components of unknown origin are treated as foreign. Scrap generated, collected, and prepared for processing in the United States is considered domestic; or

(B) The end product is a COTS item; or

(2) For an end product that consists wholly or predominantly of iron or steel or a combination of both, an end product manufactured in the United States, if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all the components used in the end product. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the end product and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the end product contains multiple components, the cost of all the materials used in such end product is calculated in accordance with the definition of “cost of components”.

End product means those articles, materials, and supplies to be acquired under the contract for public use.

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign end product means an end product other than a domestic end product.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

(b) 41 U.S.C. chapter 83, Buy American, provides a preference for domestic end products for supplies acquired for use in the United States. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for an end product that is a COTS item (see (a)(1)), except that for an end product that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the end product, excluding COTS fasteners.

(c) Offerors may obtain from the Contracting Officer a list of foreign articles that the Contracting Officer will treat as domestic for this contract.

(d) The Contractor shall deliver only domestic end products except to the extent that it specified delivery of foreign end products in the provision of the solicitation entitled "Buy American Certificate."

(End of clause)

II.21 52.232-18 AVAILABILITY OF FUNDS (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

II.22 52.233-1 DISPUTES (AUG 2025) (DEVIATION 25-25)

(a) *Definitions*. As used in this clause-

Claim means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payment of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this contract. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding $100,000 is not a claim under 41 U.S.C. chapter 71 until certified. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under 41 U.S.C. chapter 71. The submission may be converted to a claim under 41 U.S.C. chapter 71, by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.

Defective certification means a certification that alters or otherwise deviates from the language in paragraph (d)(2)(iii) of this clause or which is not executed by a person authorized to bind the contractor with respect to the claim. Failure to certify must not be deemed to be a defective certification.

(b) This contract is subject to 41 U.S.C. chapter 71, Contract Disputes.

(c) Except as provided in 41 U.S.C. chapter 71, all disputes arising under or relating to this contract must be resolved under this clause.

(d)(1) A claim by the Contractor must be made in writing and, unless otherwise stated in this contract, submitted within 6 years after accrual of the claim to the Contracting Officer for a written decision. A claim by the Government against the Contractor must be subject to a written decision by the Contracting Officer.

(2) (i) The Contractor must provide the certification specified in paragraph (d)(2)(iii) of this clause when submitting any claim exceeding $100,000.

(ii) The certification requirement does not apply to issues in controversy that have not been submitted as all or part of a claim.

(iii) The certification must state as follows: “I certify that the claim is made in good faith; that the supporting data are accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the Government is liable; and that I am authorized to certify the claim on behalf of the Contractor.”

(3) The certification may be executed by any person authorized to bind the Contractor with respect to the claim.

(e) For Contractor claims of $100,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor-certified claims over $100,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.

(f) The Contracting Officer's decision must be final unless the Contractor appeals or files a suit as provided in 41 U.S.C. chapter 71.

(g) If the claim by the Contractor is submitted to the Contracting Officer or a claim by the Government is presented to the Contractor, the parties, by mutual consent, may agree to use alternative dispute resolution (ADR). If the Contractor refuses an offer for ADR, the Contractor must inform the Contracting Officer, in writing, of the Contractor's specific reasons for rejecting the offer.

(h)(1) The Government must pay interest on the amount found due and unpaid from the date that-

(i)The Contracting Officer receives the claim (certified, if required); or

(ii) Payment otherwise would be due, if that date is later, until the date of payment.

(2) For claims having defective certifications, interest must be paid from the date that the Contracting Officer initially receives the claim. Simple interest on claims must be paid at the rate, fixed by the Secretary of the Treasury as provided in the Act, which applies to the period during which the Contracting Officer receives the claim and then at the rate that applies for each 6-month period as fixed by the Treasury Secretary while the claim is pending.

(i) The Contractor must proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract. The Contractor must comply with any decision of the Contracting Officer.

(End of clause)

II.23 52.233-3 PROTEST AFTER AWARD (AUG 2025) (DEVIATION 25-25)

(a) Upon receipt of a stop-work order, the Contractor must immediately comply with its terms and take all reasonable steps to minimize incurring costs allocable to the work covered by the order during the period of work stoppage. After receiving the final decision in the protest, the Contracting Officer must either–

(1) Cancel the stop-work order; or

(2) Terminate the work covered by the order as provided in the Default, or the Termination for Convenience of the Government, clause of this contract.

(b) If a stop-work order issued under this clause is canceled either before or after a final decision in the protest, the Contractor must resume work. The Contracting Officer must make an equitable adjustment in the delivery schedule or contract price, or both, and the contract must be modified, in writing, accordingly, if–

(1) The stop-work order results in an increase in the time required for, or in the Contractor's cost properly allocable to, the performance of any part of this contract; and

(2) The Contractor asserts its right to an adjustment within 30 days after the end of the period of work stoppage; provided, that if the Contracting Officer decides the facts justify the action, the Contracting Officer may receive and act upon a proposal submitted at any time before final payment under this contract.

(c) If a stop-work order is not canceled and the work covered by the order is terminated for the convenience of the Government, the Contracting Officer must allow reasonable costs resulting from the stop-work order in arriving at the termination settlement.

(d) If a stop-work order is not canceled and the work covered by the order is terminated for default, the Contracting Officer must allow, by equitable adjustment or otherwise, reasonable costs resulting from the stop-work order.

(e) The Government's rights to terminate this contract at any time are not affected by action taken under this clause.

(f) If, as the result of the Contractor's intentional or negligent misstatement, misrepresentation, or miscertification, a protest related to this contract is sustained, and the Government pays costs, the Government may require the Contractor to reimburse the Government the amount of such costs. In addition to any other remedy available, and pursuant to the requirements of subpart 32.6, the Government may collect this debt by offsetting the amount against any payment due the Contractor under any contract between the Contractor and the Government.

(End of clause)

II.24 52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (AUG 2025) (DEVIATION 25-25)

United States law will apply to resolve any claim of breach of this contract.

(End of clause)

II.25 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (AUG 2025) (DEVIATION 25-23)

(a) *Definitions*. As used in this clause–

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at https://www.sam.gov (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means–

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means–

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled–

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act-covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)–

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following–

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that–

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means–

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency–

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) Prohibitions on providing or using specific products or services in performance of contract. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor’s employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing–

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act–covered foreign entities.

(1) *Prohibition*. The Contractor is prohibited from–

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) Procedures. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) Exemptions, exceptions, and waivers. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at https://www.trade.gov/consolidated-screening-list, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The *Contractor* is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $10,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at https://www.sam.gov to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

II.26 52.244-6 SUBCONTRACTS for COMMERCIAL PRODUCTS and COMMERCIAL SERVICES (SEP 2025) (DEVIATION 25-34)

(a) *Definitions*. As used in this clause–

Commercial product, *commercial service* and *nondevelopmental item* have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract has the meaning at FAR 44.401.

(b) *Requirements*.

(1) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(2) If a clause in the following table is included in the contract, the Contractor shall insert the clause in subcontracts for commercial products or commercial services and must flow down the requirements of the clause to subcontracts as indicated in the specific clause:

Number	Title	Date
52.203-13	Contractor Code of Business Ethics and Conduct	Nov 2021
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-9	Personal Identity Verification of Contractor Personnel	Jan 2011
52.219-8*	Utilization of Small Business Concerns	Jan 2025
52.222-35	Equal Opportunity for Veterans	Jun 2020
52.222-36	Equal Opportunity for Workers with Disabilities	Jun 2020
52.222-37	Employment Reports on Veterans	Jun 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	Dec 2010
52.222-41	Service Contract Labor Standards	Aug 2018
52.222-50	Combating Trafficking in Persons	Nov 2021
52.222-50	"With Alt I Combating Trafficking in Persons, Alternate I"	Mar 2015
52.222-51	"Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment–Requirements"	May 2014
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services–Requirements	May 2014
52.222-54	Employment Eligibility Verification	Jan 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	Jan 2022
52.224-3	Privacy Training	Jan 2017
52.224-3	"with Alt I Privacy Training, with Alternate I"	Jan 2017
52.225-26	Contractors Performing Private Security Functions Outside the United States	Oct 2016
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar 2023
52.240-3	Security Prohibitions and Exclusions	DATE
52.240-3	"with Alt I Security Prohibitions and Exclusions, with its Alternate I"	DATE
52.240-4	Security Requirements	DATE
52.240-4	"with Alt II Security Requirements, with its Alternate II"	DATE
52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels	Nov 2021

* Include only if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include *52.219-8* in lower tier subcontracts that offer subcontracting opportunities.

(c) *Subcontracts*. The Contractor shall include the terms of this clause, including this paragraph (c), in subcontracts awarded under this contract.

(End of clause)

II.27 CONTRACT TYPE (OCT 2008)

This is an Indefinite Delivery Indefinite Quantity Contract. Delivery Orders against the contract will be firm fixed price.

[End of Clause]

II.28 SPECIFICATIONS, STATEMENT OF WORK, STATEMENT OF OBJECTIVES OR PERFORMANCE WORK STATEMENT ATTACHED (JUN 2013)

The Specifications, Statement of Work, Statement of Objectives or Performance Work Statement which describe the work to be performed hereunder, although attached, is incorporated and made a part of this document with the same force and effect of “specifications” as described in the clause, Order of Precedence, FAR 52.215-8 incorporated herein by reference.

[End of Clause]

II.29 TERM OF CONTRACT (MARCH 2003)

The term of this contract is from TBD through TBD.

[End of Clause]

II.30 CONTRACTING OFFICER'S AUTHORITY (MAR 2003)

The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract. In the event the Contractor effects any changes at the direction of any person other than the Contracting Officer, the changes will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in costs incurred as a result thereof. The Contracting Officer shall be the only individual authorized to accept nonconforming work, waive any requirement of the contract, or to modify any term or condition of the contract. The Contracting Officer is the only individual who can legally obligate Government funds. No cost chargeable to the proposed contract can be incurred before receipt of a fully executed contract or specific authorization from the Contracting Officer.

[End of Clause]

II.31 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS - INVOICE PROCESSING PLATFORM (IPP) (AUG 2024)

1. Payment requests must be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP).

2. "*Payment request*" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in FAR 32.905(b), "Payment documentation and process" and the applicable Prompt Payment clause included in this contract. The IPP website address is: https://www.ipp.gov.

3. Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice (The Contracting Officer is required to list the documentation required under this contract. If no documentation is required, enter “none”.):

    -None______________________

4. The IPP was designed and developed for Contractors to enroll, access, and use IPP for submitting requests for payment.

    a. If the Contractor is not registered in IPP, CBP will initiate a request to the U.S. Department of Treasury to grant access. The Contractor’s System for Award Management (SAM) accounts receivable point of contact will receive an email notification from the U.S. Department of Treasury with instructions to register with ID.me or Login.gov.

b. Once registered, the Contractor is required to log in to the IPP Application at https://www.ipp.for.fiscal.treasury.gov/ and submit their invoices.

5. If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer. The Contracting Officer will provide the waiver request form to the Contractor to complete upon request.

6. In accordance with FAR 32.904(b), the Contracting Officer, in conjunction with the COR will determine whether the invoice is proper or improper within seven (7) days of receipt. Improper invoices will be returned to the contractor within seven (7) days of receipt.

7. Contractor assistance with the use of IPP can be obtained by emailing the U.S. Treasury IPP Customer Support at IPPCustomerSupport@fiscal.treasury.gov or by phone at (866) 973-3131.

(End of Supplementary Term and Condition)

II.32 GOVERNMENT CONSENT OF PUBLICATION/ENDORSEMENT (MAR 2003)

Under no circumstances shall the Contractor, or anyone acting on behalf of the Contractor, refer to the supplies, services, or equipment furnished pursuant to the provisions of this contract in any news release or commercial advertising without first obtaining explicit written consent to do so from the Contracting Officer

The Contractor agrees not to refer to awards in commercial advertising in such a manner as to state or imply that the product or service provided is endorsed or preferred by the Federal Government or is considered by the Government to be superior to other products or services.

[End of Clause]

CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

1) Attachment 1 - Statement of Work (SOW)
2) Attachment 2 – Pricing Sheet

SECTION III SOLICITATION PROVISIONS

III.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov .

(End of provision)

III.2 52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS – REPRESENTATION (JAN 2017)

III.3 52.211-14 NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

III.4 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any *Department of Homeland Security Acquisition Regulation (HSAR)* (48 CFR Chapter *30*) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

III.5 52.204-7 SYSTEM FOR AWARD MANAGEMENT-REGISTRATION (AUG 2025) (DEVIATION 25-19)

The Offeror shall have an active Federal Government contracts registration in the System for Award Management (SAM) when submitting an offer or quotation in response to this solicitation and at the time of award. As part of the SAM registration process, the Government collects information, as described in paragraphs (b) through (d) of this provision, that is necessary to identify the Offeror and for the Offeror to be awarded Federal Government contracts. To register in SAM, go to https://www.sam.gov. Allow for processing time when registering in SAM. If the Offeror is not registered in SAM, it should register immediately after receiving this solicitation.

(a) *Definitions*. As used in this provision–

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at the Federal Acquisition Regulation (FAR) 52.204-13, System for Award Management–Maintenance, of this solicitation.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.
Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).
Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer identification number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b) *Identifiers*. The Offeror shall obtain and provide the following identifying information:

(1) *Unique entity identifier (UEI)*.

(i) The Offeror shall obtain a UEI to register in SAM. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI to the Offeror. Go to https://www.sam.gov for instructions on obtaining a UEI.

(ii) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(iii) The Contracting Officer will use the UEI to verify that the Offeror has an active Federal Government contracts registration in SAM.

(2) *Taxpayer identification number (TIN).*

(i) The Offeror shall provide its TIN or related information to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and implementing regulations issued by the IRS. The Offeror shall consent for TIN validation; and

(3) *Commercial and Government Entity (CAGE) code.*

(i) The Offeror shall provide a CAGE code and legal business name (Do not use a “doing business as” name) for–

(A) Itself;

(B) Its immediate owner(s), if any;

(C) Its highest-level owner, if any; and

(D) Any predecessor(s), or predecessor of an Offeror’s predecessor, that held a Federal contract or grant within the last three years.

(ii) If the Offeror is in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA CAGE Branch will assign a CAGE code to the Offeror as a part of the SAM registration process. For information on obtaining a CAGE code go to https://cage.dla.mil/.

(iii) The Offeror shall get from any immediate and/or highest-level owner(s) their respective CAGE code(s) to provide the code(s) as part of the registration (FAR 52.204-7(b)(3)(i)).

(iv) If the Offeror is located outside of the United States or its outlying areas, and does not already have a CAGE code assigned, the Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is…	**Then . . .**
Located in a country that is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located in a country that is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(c) *Representations and certifications*.

(1) The following FAR solicitation provisions contain entity-level representations and certifications that the Offeror shall submit as part of their Federal Government contracts registration in SAM:

Provision	Title	Date
52.204-5	Women-Owned Business (Other Than Small Business)	OCT 2014
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations–Representation	NOV 2015
52.209-5	Certification Regarding Responsibility Matters	AUG 2020
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	FEB 2016
52.219-1	Small Business Program Representations	FEB 2024
52.219-1 Alt I	Small Business Program Representations, with its Alternate I	FEB 2024
52.219-1 Alt II	Small Business Program Representations, with its Alternate II	MAR 2023
52.226-2	Historically Black College or University and Minority Institution Representation	OCT 2014

(2) By submitting its offer, the Offeror verifies that, as of the date of its offer, its representations and certifications posted electronically in SAM for the provisions listed in paragraph (c)(1) of this provision are current, accurate, and complete. The Offeror's representations and certifications in SAM are hereby incorporated by reference into its offer.

(d) *Other information.* The *Offeror* shall provide more information on its business operations and type that is necessary to be considered for award of certain contracts and financial information necessary to receive payment under contracts.

(End of provision)

III.6 52.209-2 PROHIBITION on CONTRACTING with INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (NOV 2025)(DEVIATION 25-27)

(a) *Definitions*. As used in this clause–

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned–

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation*. The Offeror represents that-

(1) It □ is, □ is not an inverted domestic corporation; and

(2) It □ is, □ is not a subsidiary of an inverted domestic corporation.

(End of provision)

III.7 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (NOV 2025)(DEVIATION 25-27)

(a) *Definitions*. As used in this provision–

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means–

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror □ has □ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

III.8 52.209-11 REPRESENTATION by CORPORATIONS REGARDING DELINQUENT TAX LIABILITY or a FELONY CONVICTION UNDER ANY FEDERAL LAW (NOV 2025)(DEVIATION 25-27)

(a) The Government will not enter into a contract with any corporation that–

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that–

(1) It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

III.9 52.212-1 INSTRUCTIONS to OFFERORS–COMMERCIAL PRODUCTS and COMMERCIAL SERVICES (AUG 2025) (DEVIATION 25-21)

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include–

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without competitive negotiations with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct competitive negotiations, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

III.10 ADDENDUM TO 52.212-1, INSTRUCTIONS TO OFFERORS

1. **FOR THE PURPOSE OF TRANSFERRING WEAPONS TO CBP, THE “ORI” NUMBER IS:** WVCBP0100

2. **DEADLINE FOR RECEIPT OF QUESTIONS FROM PROSPECTIVE OFFERORS**

Potential offerors may submit questions in writing, regarding the SOW and the terms and conditions of this solicitation electronically via email, but questions must be received in the office designated below no later than (NLT) **May 21, 2026 at 2:00 PM ET**.

All questions related to this solicitation shall be submitted in writing. The Government reserves the right not to answer any questions and/or transmit questions and answers to all prospective offerors.

Submit questions to the email address listed below. **TELEPHONE INQUIRIES WILL NOT BE ACCEPTED.**

Mr. John Crocket
Contracting Officer
DHS/CBP Procurement Directorate
Email: john.t.crockett@cbp.dhs.gov

3. **PROPOSAL DUE DATE AND ADDRESSES**

PROPOSAL DUE DATE:
All required submissions for Phase **I** (1) and Phase **II** (2) to include all written proposals and samples are due no later than **June 9, 2026 at 2:00 PM ET** to the locations listed below. **LATE PROPOSALS WILL NOT BE ACCEPTED.**

At the conclusion of the evaluation process, CBP will return all submitted equipment to offerors, with the following exceptions:

- For submissions not progressing to Phase Two of the evaluation, CBP will retain the Standard Duty Rifle Two Stage Trigger (SDR2, SOW 4.1.3), all individually packaged parts provided as part of the submission, and any parts or rifles determined by CBP to be the cause for disqualification. All other submitted rifles and equipment will be returned to the offeror.

- For submissions progressing to Phase Two, CBP will retain the SDR2 (SOW 4.1.3), all individually packaged parts, two complete Standard Duty Rifle (SDR) packages, two complete Mid-Length Duty Rifle (MDR) packages, and any parts or rifles determined by CBP to be the cause for disqualification. All other submitted rifles and equipment will be returned to the offeror.

Offerors are responsible for coordinating the return shipment of their equipment. CBP will provide notification and instructions for the return of items following completion of the evaluation process. CBP assumes no liability for loss or damage to equipment during evaluation or return shipment.

ADDRESSES:

Volume I: Technical Proposal (Phase I) (Non-Price)
(Shall contain both written and sample requirements.)

- Written proposal will be submitted to both the program office at Harpers Ferry and CBP Procurement.

- Sample weapons and weapons parts shall only be submitted to Harpers Ferry.

Program Office (Written & Samples):
U.S. Customs and Border Protection
440 Koonce Road
Harpers Ferry, WV 25425
Attn: Matthew Butts
(Must contain the RFP number for identification purposes.)

CBP Procurement (Written):
Shall be emailed to:
John Crockett
Email: john.t.crockett@cbp.dhs.gov
Subject line must contain the RFP number: 70B06C26Q00000082

Volume II: Technical Proposal (Phase II) (Non-Price)
The proposal submission requirement for this phase will be covered in the submission of Volume I.

Volume III: Price Proposal (Phase II)
Shall be emailed to:
John Crockett
Email: john.t.crockett@cbp.dhs.gov
Subject line must contain the RFP number: **70B06C26Q00000082**

4. **PROPOSAL PREPARATION AND CONTENT**

Each offeror's proposal submitted in response to this solicitation shall be in two separate volumes: **Volumes I and III.**

Volume I – Technical Proposal (Phase I) (Non-Price)

Shall contain both written and sample requirements.
Written proposal shall be placed in a binder and tabbed **a through f**, identifying the corresponding information.

The Volume I written proposal shall contain the following:

a. A description of the Offeror's approach and technical characteristics satisfying each requirement of this solicitation.

- Description shall contain technical specifications for each item addressing all requirements contained in the SOW.

b. Manufacturer's Certificate (Letter) of Warranty

- Include warranty coverage and timeframes.

c. Self-certification of ISO 900X certification.

d. Self-certification, if Offeror is not the manufacturer, indicating Offeror is an authorized distributor/retailer of the device and its accompanying accessories.

- Include authorized distributor letter from each item's manufacturer.
- Unauthorized distributors and retailers are unacceptable and will not be considered.

e. Training requirements self-certifying documentation.

f. PDF containing exploded schematics of proposed devices, to include individual part identification and part numbers.

The Volume I physical sample proposal shall contain the following items shipped to Harpers Ferry for testing.

Complete Rifles : With the exception of the lower receiver, all rifle components shall be devoid of all manufacturer/brand name/vendor identifiable markings

- 2 Complete Rifle Packages for Each:
    - Standard Duty Rifle (SDR) (SOW 4.1.1)
    - Mid-Length Duty Rifle (MDR) (SOW 4.1.5)

- 1 Complete Rifle Package for Each:
    - Standard Duty Rifle – SEMI (SDR(S)) (SOW 4.1.2)
    - Standard Duty Rifle Two Stage Trigger (SDR2) (SOW 4.1.3)
    - Standard Duty Rifle – SEMI Two Stage Trigger (SDR2(S)) (SOW 4.1.4)
    - Mid-Length Duty Rifle – SEMI (MDR(S)) (SOW 4.1.6)
    - Mid-Length Duty Rifle Two Stage Trigger (MDR2) (SOW 4.1.7)
    - Mid-Length Duty Rifle – SEMI Two Stage Trigger (MDR2(S)) (SOW 4.1.8)

Components: Provide 1 of each of the following. Each item shall be individually packaged and clearly labeled with nomenclature listed below

- 11.5” Barrel (SOW 4.3.1)
- 14.5” Barrel (SOW 4.3.2)
- SDR M-LOK Handguard (SOW 4.3.4)
- MDR M-LOK Handguard (SOW 4.3.5)
- Upper Receiver (SOW 4.4.1)
- Forward Assist Assembly (SOW 4.4.2)
- Ejection Port Cover (SOW 4.4.3)
- Charging Handle (SOW 4.4.4)
- Back Up Iron Sights (SOW 4.4.5)
- Bolt Carrier Group Assembly (SOW 4.4.6)
- Gas Block Assembly (SOW 4.4.7)
- Carbine Length Gas Tube (SOW 4.4.8)
- Mid-Length Gas Tube (SOW 4.4.9)
- Muzzle Device (SOW 4.4.10)
- Receiver Extension Tube (SOW 4.6.9)
- Buffer Detent Pin with Spring (SOW 4.6.10)
- End Plate (SOW 4.6.11)
- Castle Nut (SOW 4.6.12)
- H2 Buffer (SOW 4.6.13)
- Buffer Spring (SOW 4.4.14)
- Buttstock (SOW 4.4.15)
- Single Stage Trigger (SOW 4.6.16)
- Two Stage Trigger (SOW 4.6.17)
- Trigger Guard (SOW 4.6.18)
- Grip (SOW 4.4.19)
- Pivot/Takedown Pins (SOW 4.6.20)
- Bolt Catch Package (SOW 4.6.21)
- Ambidextrous Selector Select Fire (SOW 4.6.22)
- Ambidextrous Selector Semi (SOW 4.6.23)
- Selector Spring and Detent (SOW 4.4.24)
- Magazine Catch (SOW 4.4.25)
- OQ Sling Swivel (SOW 4.7.1)
- M-LOK Compatible QD Sling Adapter (SOW 4.7.2
- M-LOK 3” Picatinny Rail Section (SOW 4.7.3)

- Ajustable Sling (SOW 4.7.4)
- 30 Round Magazine (SOW 4.7.5)

Optional Submission Item(s): Personal Defense Weapons (PDWs), Ambidextrous Magazine Release, Specialty Coated Bolt Carrier Group

Optional submission items are **not** a requirement for contract award. If an offeror chooses to propose any of the optional submission items (PDW, Ambidextrous Magazine Release, or Specialty Coated Bolt Carrier Group), they shall be assessed for compliance with technical specifications contained in SOW Addendum A. However, the items shall have **no bearing** on Source Selection but shall be incorporated in the Schedule of Supplies should the offeror be awarded the contract.

Offerors choosing to propose any of the items addressed in SOW Addendum A as part of their Volume I proposal shall ship **one** physical sample of the proposed item to Harpers Ferry for testing (see Statement of Work Addendum A).

A.Technical Evaluation Volume 1, Phase 1, non-price, Part A Pass/Disqualifying Criteria (Pass/DQ) – This portion of the source selection shall be conducted by the Technical Evaluation Committee (TEC). TEC will utilize the Statement of Work (SOW) to reference technical requirements. All items must meet the specifications for that particular item identified in the Statement of Work. A DQ in any single section listed below may disqualify the proposal in its entirety. The TEC will evaluate the AR Platform Rifle submission documentation and/or rifle exemplars for compliance with the requirements contained in the Statement of Work. Each test criteria's evaluation shall be conducted for the Standard Duty Rifle (SDR) and Mid-Length Duty Rifle (MDR) unless otherwise specified. For this evaluation, the term rifle shall refer to each individually serialized rifle, unless otherwise stated. Trigger pull weights shall be measured on the SDR and Standard Duty Rifle Two Stage Trigger (SDR2), unless otherwise stated.

- Does proposal contain all required documents and samples? (Pass/DQ)
- Does the proposal contain ISO certification documentation for the vendor (and manufacturer if different than the vendor)? (Pass/DQ)
- Are the rifles chambered in 5.56x45mm NATO? (Pass/DQ)
- Do the rifles have the following characteristics? (Pass/DQ)
    - Fully Assembled
    - Head Spaced and test Fired (documentation)
    - Direct Impingement Gas Operated
    - Uniform in color (black or FDE)
    - Hardcoat anodized (Type III, Class 2)
    - Free of blemishes and excessive tool marks
    - All parts requiring finishing/coating are finished/coated independently prior to assembly.
    - The total weight of SDR model rifle does not exceed 6.0 lbs.
        - Weight shall include rifle and BUIS. Weight shall exclude:
            - QD sling swivels
            - M-LOK QD Sling Adapter
            - M-LOK Rail sections
            - Adjustable Sling
            - Magazines
    - The total weight of MDR model rifle does not exceed 6.75 lbs.
        - Weight shall include rifle and BUIS. Weight shall exclude:
            - QD sling swivels
            - M-LOK QD Sling Adapter
            - M-LOK Rail sections
            - Adjustable Sling

  - Magazines

- Does proposal contain two complete rifle packages (SDR and MDR)? (Pass/DQ)

  - Standard Duty Rifle (SDR) (SOW Section 4.1.1)
  - Complete guns shall include the following:
    - SDR Upper receiver assembly (SOW Section 4.2.1)
    - Lower receiver assembly (SOW Section 4.5.1)
    - Front and Rear Back Up Iron Sights (SOW 4.4.5)
    - (2) QD sling swivels (SOW 4.7.1)
    - (1) M-LOK QD Sling Adapter (SOW 4.7.2)
    - (1) M-LOK 3" Rail Section (SOW 4.7.3)
    - (1) Adjustable Sling (SOW 4.7.4)
    - 2 Magazines (SOW 4.7.5)

  - Mid-Length Duty Rifle (MDR) (SOW Section 4.1.5)
  - Complete guns shall include the following:
    - MDR Upper receiver assembly (SOW Section 4.2.2)
    - Lower receiver assembly (SOW Section 4.5.1)
    - Front and Rear Back Up Iron Sights (SOW 4.4.5)
    - (2) QD sling swivels (SOW 4.7.1)
    - (1) M-LOK QD Sling Adapter (SOW 4.7.2)
    - (1) M-LOK 3" Rail Section (SOW 4.7.3)
    - (1) Adjustable Sling (SOW 4.7.4)
    - 2 Magazines (SOW 4.7.5)

- Does the proposal contain the following additional parts? (Pass/DQ)
    - 11.5 Barrel (SOW 4.3.1)
    - 14.5 Barrel (SOW 4.3.2)
    - SDR M-LOK Handguard (SOW 4.3.4)
    - MDR M-LOK Handguard (SOW 4.3.5)
    - Upper Receiver (SOW 4.4.1)
    - Forward Assist Assemble (SOW 4.4.2)
    - Ejection Port Cover (SOW 4.4.3)
    - Charging handle (SOW 4.4.4)
    - Back Up Iron Sights (SOW 4.4.5)
    - Bolt Carrier Group Assembly (SOW 4.4.6)
    - Gas Block Assembly (SOW 4.4.7)
    - Carbine Length Gas Tube (SOW 4.4.8)
    - Mid-Length Gas Tube (SOW 4.4.9)
    - Muzzle Device (SOW 4.4.10)
    - Stripped Lower Receiver Select Fire (SOW 4.6.1)
    - Stripped Lower Receiver Semi (SOW 4.6.2)
    - Receiver Extension Tube (SOW 4.6.9)
    - Buffer Detent Pin with Spring (SOW 4.6.10)
    - End Plate (SOW 4.6.11)
    - Castle Nut (SOW 4.6.12)
    - H2 Buffer (SOW 4.6.13)
    - Buffer Spring (SOW 4.4.14)
    - Buttstock (SOW 4.4.15)
    - Single Stage Trigger (SOW 4.6.16)
    - Two Stage Trigger (SOW 4.6.17)

- Trigger Guard (SOW 4.6.18)
- Grip (SOW 4.4.19)
- Pivot/Takedown Pins (SOW 4.6.20)
- Bolt Catch Package (SOW 4.6.21)
- Ambidextrous Selector Select Fire (SOW 4.6.22)
- Ambidextrous Selector Semi (SOW 4.6.23)
- Selector spring and detent (SOW 4.4.24)
- Magazine Catch (SOW 4.4.25)

- Does the proposal meet the following Training requirements? (Pass/DQ) (Self-certifying Document)
  - Vendor shall provide advanced depot level armorer training classes for up to 25 participants, once during the base year and once during each subsequent option year of the contract. The training shall be at no additional cost to the government.
  - The location of the training shall be within CONUS at a location to be determined by the government. The date and time of the training shall be mutually agreed upon in writing, but shall not occur more than two weeks after the government's written request unless authorized by the COR.
  - The course shall cover all firearms included in the statement of work.
  - Vendor shall provide to each participant, at no additional cost to the government, 4 sets of all specialty tools needed for rifle assembly/disassembly.
  - Depot level armorer maintenance overhaul/rebuild manual.
  - Exploded diagram with nomenclature description of all parts.

B. Technical Evaluation Volume 1, Phase 1, non-price, Part B Score/ Disqualifying Criteria (Score/DQ) - This portion of the source selection shall be conducted by the TEC Pre-Down Select. Individual evaluations apply to each rifle type (SDR and MDR), unless specifically noted in the evaluation description. For this evaluation, the term rifle shall refer to each individually serialized rifle, unless otherwise stated.

Function Tests shall be performed on each rifle assembly. Each rifle assembly shall be subjected to a comprehensive function test to verify proper operation of all mechanical and safety features in accordance with M4 Carbine standards. The function test will be performed on Select Fire lower receivers, Semi-Automatic lower receivers, as well as select fire and semi-automatic two-stage lower receivers. For Select Fire lower receivers, both semi-automatic and full-automatic modes will be evaluated. A function test consists of cycling the action, engaging and disengaging the safety, verifying the trigger reset, and ensuring reliable feeding, firing, extraction, and ejection of cartridges during live fire.

Function Test 1 – Safe and Empty Weapon:

Test to ensure proper mechanical functioning on Safe, Semi-Automatic, and Full-Automatic (select fire receiver's) with both single stage and two-stage triggers. As per military standards.

Function Test 2 – Initial Gauging using CBP M4 Gauge Kit (Pacific Tool and Gauge PN 56255352

Headspace Check GO and NOGO
Firing Pin Protrusion GO and NOGO
Throat Erosion Check (with reference photo)
Firing Pin Hole NOGO
Trigger and Hammer Pin Hole NOGO
5.56mm NATO Chamber Function Check
Any weapon failing a NOGO check will be a DQ.

Function Test 3 – Non-Firing Manual Cycling of Live Ammunition

On a Live Fire Range, keeping the muzzle pointed down range and the weapon on SAFE, manually cycle one magazine of 30 rounds of 5.56mm duty ammunition, and one magazine of 30 rounds of 223 Duty Ammunition. Testing for any stuck rounds in the chamber and bolt locking to the rear on an empty magazine. Looking for 0 instances of in-specification ammunition sticking in the chamber.

Function Test 4 SF– Live Fire Function Test – Select Fire Receivers

On a Live Fire Range, with a magazine of 20 rounds. Fire 5 rounds semi-automatic checking for trigger reset each shot. Fire five consecutive 2 rounds bursts on full-automatic. Fire the remaining or 5 rounds in one burst on full-automatic. Bolt should lock to the rear on an empty magazine.

Function Test 4 SA - Live Fire Function Test – Semi-Automatic only Receivers

On a Live Fire Range, with a magazine of 10 rounds. Fire 10 rounds semi-automatic checking for trigger reset each shot. Bolt should lock to the rear on an empty magazine.

Function Test 5 – Interoperability and Parts Compatibility with CBP Colt M4A1 Rifles

Select fire rifle assemblies shall be tested for full parts interchangeability and operational compatibility with CBP-issued Colt M4A1 5.56mm Carbines. Due to the complexity and sensitivity of this procedure, only CBP Equipment Specialists (Ordnance) (ESOs) will perform the following steps:

1. Individual Component Swapping and Testing:
   For each of the following major components:
   - Complete Upper receiver
   - Complete Lower receiver
   - Bolt carrier group
   - Barrel
   - Handguard
   - Trigger assembly
   - Pistol grip
   - Buffer tube

   perform the following sequence, one component at a time:

   a. Remove the selected component from the select fire rifle and install it onto the corresponding location on the CBP Colt M4A1, leaving all other components as original Colt parts.
   b. Verify proper fit and installation of the swapped component.
   c. Conduct a non-live fire function check by cycling the action, engaging and disengaging the safety, and verifying trigger reset.
   d. On a live fire range, insert a magazine with 10 rounds. Fire all 10 rounds in semi-automatic mode, checking for trigger reset after each shot. Observe for reliable feeding, firing, extraction, and ejection of each cartridge. Confirm that the bolt locks to the rear upon completion of the magazine.
   e. Remove the swapped component and reinstall the original Colt part before proceeding to the next component.

   Repeat this process for each component listed above. At no point will the rifle be fully disassembled into all components at once; only one component is swapped and tested at a time.

2. Reverse Component Swapping:
   Concurrently, replicate the procedure above by removing each component from the CBP Colt M4A1 and installing it onto the select fire rifle under evaluation, one component at a time, leaving all other components as original select fire rifle parts. Verify proper fit, installation, and function as described above.

   Criteria:
   - No modifications or force fitting shall be permitted during any installation.
   - Each swapped component must fit, function, and operate as intended per MILSPEC standards.

All parts and assemblies must be fully interchangeable and compatible with CBP Colt M4A1 rifles, with no modification required.

Trigger pull weights shall be measured on the Select Fire lower receivers with single stage trigger, as well as the select fire lower receivers with two-stage triggers. The Select Fire lower receiver will have both semi and full-automatic modes measured. If any DQ rating is encountered, stop the evaluation, record the DQ, and contact the Contracting Officer immediately. The following protocols will be used to measure and record the trigger weight of the rifle assemblies below:

- SDR (SOW 4.1.1)
- SDR2 (SOW 4.1.3)

Trigger Pull Test Protocol (Single Stage and Two Stage Triggers)

General Setup (Applicable to Both Trigger Types):

- The unloaded rifle shall be mounted on an AR lower receiver magazine well vise block secured in a vise.
- Trigger weight shall be measured and recorded using a Lyman Digital Trigger Pull Gauge.
- The firearm barrel axis will be parallel to the Lyman Trigger Pull Gauge.
- The trigger pull gauge will be inserted into the trigger mechanism, such that it rests against the inside curve on the trigger.
- The portion of the trigger pull gauge in contact with the trigger will be constructed from a freely spinning mechanism. This will allow the test setup to adjust for the “arc” pattern typical amongst most trigger mechanisms. As the trigger is pulled and progresses along its arc pattern, the trigger tool will be able to move freely along the trigger, ensuring the force applied to the trigger is always parallel with the barrel of the weapon.
- This process will be continued until the weapon “dry-fires.” At this point, the trigger pull testing will be concluded.

A. Single Stage Trigger Testing:

- For each function (semi-automatic and full-automatic), trigger weight will be measured a total of ten (10) times.
- The final load applied to achieve “dry-fire,” in pounds, shall be recorded for each pull.
- Each set of ten trigger pull weights per function will be averaged separately and those average weights shall be recorded for scoring purposes.
- Standard Deviation will be calculated per each function and recorded for scoring purposes.

B. Two Stage Trigger Testing:

- For semi-automatic function, the following values shall be recorded for each of ten (10) trigger pulls:
    - First stage pull weight (in ounces)
    - Total pull weight (in ounces)
    - Second stage pull weight (calculated as total weight minus first stage weight)
- Each of the three values (first stage, total, second stage) will be averaged separately for comparison against SOW requirements.

- For full-automatic function, only the total trigger pull weight will be recorded (as per the single stage trigger procedure), for each of ten (10) pulls.
- Each set of ten trigger pull weights per function and sub-function will be averaged separately and those average weights shall be recorded for scoring purposes.
- Standard Deviation will be calculated per each function and recorded for scoring purposes.
- Single Stage Trigger Weight Pull Testing – Evaluate the trigger weight in accordance with SOW Section 4.6.16 for Select Fire Lower Receiver in Semi-Automatic mode; (20 Points maximum)
    - DQ if average pull weight is less than 4 lbs. 8.0 oz.
    - DQ if average pull weight is greater than 8 lbs. 0.0 oz.

- Single Stage Trigger Weight Pull Testing – Evaluate the trigger weight Standard Deviation in accordance with SOW Section 4.6.16 for Select Fire Lower Receiver in Semi-Automatic mode; (25 Points maximum)
    - DQ if Standard Deviation is over 6.0.

$$\mathrm{SD} = \sqrt{\frac{\sum |x - \mu|^2}{N}}$$

- Single Stage Trigger Weight Pull Testing – Evaluate the trigger weight in accordance with SOW Section 4.6.16 for Select Fire Lower Receiver in Full-Automatic mode; (20 Points maximum)
    - DQ if average pull weight is less than 7 lbs. 8.0 oz.
    - DQ if average pull weight is 11 lbs. 0.0 oz or greater
- Single Stage Trigger Weight Pull Testing – Evaluate the trigger weight Standard Deviation in accordance with SOW Section 4.6.16 for Select Fire Lower Receiver in Full-Automatic mode; (25 Points maximum)
    - DQ if Standard Deviation is over 6.0.
- Two Stage Trigger Weight Pull Testing (1st Stage) – Evaluate the trigger weight in accordance with SOW Section 4.6.17 for Select Fire Lower Receiver in Semi-Automatic mode; (20 Points maximum)
    - DQ if average first stage pull weight is less than 1.5 lbs.
    - DQ if average first stage pull weight is greater than 3.5 lbs.
- Two Stage Trigger Weight Pull Testing (2nd Stage) – Evaluate the trigger weight in accordance with SOW Section 4.6.17 for Select Fire Lower Receiver in Semi-Automatic mode; (20 Points maximum)
    - DQ if average second stage pull weight is less than 1.5 lbs.
    - DQ if average second stage pull weight is greater than 2.5 lbs.
    - Two Stage Trigger Weight Pull Testing (Total Pull Weight) – Evaluate the trigger weight in accordance with SOW Section 4.6.17 for Select Fire Lower Receiver in Full-Automatic mode; (20 Points maximum)

  - DQ if average total pull weight is less than 3.5 lbs.
  - DQ if the average pull weight is greater than 5.5 lbs.
- Two Stage Trigger Weight Pull Testing – Evaluate the trigger weight in accordance with SOW Section 4.6.17 for Select Fire Lower Receiver in Full-Automatic mode; (20 Points maximum)
  - DQ if average pull weight is less than 4.75 lbs. or greater than 5.25 lbs.

Precision grouping (accuracy) testing will be conducted with SDR (SOW 4.1.1) and MDR (SOW 4.1.5) rifle assemblies, using the following protocols:

- Rifle shall be cleaned and lubricated in accordance with the owner's manual.
- Rifle upper receiver shall be secured into a Bill Weisman and Co. (wisemanballistics.com) AR receiver fixture, attached to a windage and elevation table, bolted to the concrete floor. All accuracy testing will be fired using current contract CBP duty ammunition consisting of Federal 5.56x45mm 64GR Tactical bonded Soft Point, Z556T64XCBP and .223 REM 62GR, Tactical bonded Soft Point, Z223SP.
  - If there is a conflict between the fixture and some part of the rifle that is known, the vendor is allowed to provide an appropriate remedy that does not permanently alter the fixture or the weapon.
  - Alternatively, a vendor may request the use of CBP precision marksman to perform the test from a supported prone position and magnified optic attached.
- "Settling shots" shall be fired prior to shooting for record.
- Five 5 - shot groups will be fired at a distance of 100 yards.
- The best four of the five shots per group will be measured to determine the group size.
- The best four groups of the five groups shot will be used to obtain a final average group size per rifle.
- Accuracy shall be measured utilizing paper witness targets, adhered to a semi-rigid material, mounted in a rigid test fixture. Measurements shall be taken from outer edge to outer edge of the further most holes and then subtract the bullet diameter to obtain a "center to center" final calculation.
- Barrel will be cooled to ambient temperature (+/- 10 degree) between groups.
- The average initial precision grouping per rifle shall not exceed 4.00 inches (5.56x45mm) or 4.14 inches (.223 REM) with an optimal grouping of less than 1.25 inches (5.56x45mm) and 1.38 inches with .223 REM ammunition.
  - Precision Grouping (Initial) Testing 5.56 – Evaluate the inherent accuracy of the SDR rifle prior to Down Select reliability/durability testing; (100 points maximum)
    - DQ if group (4 best impacts of 5 shot groups) exceeds 4.00.
  - Precision Grouping (Initial) Testing 5.56 – Evaluate the inherent accuracy of the MDR rifle prior to Down Select reliability/durability testing; (50 points maximum)
    - Award 0 points if group (4 best impacts of 5 shot groups) exceeds 4.00".
  - Precision Grouping (Initial) Testing .223 – Evaluate the inherent accuracy of the SDR rifle prior to Down Select reliability/durability testing; (50 points maximum)
    - DQ if group (4 best impacts of 5 shot groups) exceeds 4.13".

- Precision Grouping (Initial) Testing .223 – Evaluate the inherent accuracy of the MDR rifle prior to Down Select reliability/durability testing; (25 points maximum)
  - Award 0 points if group (4 best impacts of 5 shot groups) exceeds 4.13”.

Technical performance criteria sub-scoring Part B (100 Max Score); Add up the total points earned, divided by the total possible points, then multiplied by 100 to achieve the technical performance score. This number should then be used as the Phase I performance score (shown below in B1). All decimals on the final score shall be rounded up to the next whole number.

Formula B1

$\left({}^{XXX}/_{395}\right) \times 100$ = Final Score Part B

C. User Interface Assessment Volume 1, Phase 1, non-price, Part C, Score/Disqualification (Score/DQ) - This portion of the Source Selection shall be accomplished through a user interface assessment conducted by operational personnel (officers and agents) at Harpers Ferry, WV. Individual points for each submitted SDR will be collected for each participant. All participant evaluation points will then be averaged to obtain a User Interface Assessment sub-score for each submitted SDR (vendor).

Source Selection personnel will facilitate one evaluation group at Harpers Ferry, WV. The assessment participants shall be members of the TEC Subcommittee. The evaluation group shall consist of 24 Officers/Agents, provided by the CBP LESC National Firearms and Tactics Training Branch, along with the three major operational components of CBP: Office of Border Patrol (USBP), Office of Field Operations (OFO), and Office of Air and Marine (AMO).

All users involved in the testing will be briefed on each exercise by source selection personnel prior to starting. This briefing shall include a description of each exercise and instructions on scoring. In addition, each user will be briefed on the confidentiality of this test and its importance in the overall evaluation process. Participants will complete all exercises for each rifle prior to completing their evaluations.

Testing methodology issues:

- All firearms used in the assessment shall be cleaned once per manufacturer’s recommendations prior to commencing the assessment.
- The same 24 participants shall be used for the evaluation of all firearms.
- Each firearm shall be numbered with masking tape for identification and all manufacturer markings will be covered. For each evaluation, participant’s firearms designator number shall be recorded on their score sheet.
- Each participant will fire 30 rounds from each rifle. 10 rounds will be fired at the 25 yard line in a 5 minute period, in the position of choice of the shooter. The participants will then move to the 15 yard line and from a standing position, will fire the additional 10 rounds at their pace, within a 3 minute period. The shooters will then fire 2 rounds in 2 seconds, 3 rounds in 3 seconds, and 5 rounds in 5 seconds, using a standard CBP qualification target.

Evaluations: Evaluate the rifles with respect to the following criteria. Each criteria shall be rated on a scale of 1 to 5, with the rating multiplied by a scaling factor to arrive at the final score in each category. (100 points max)

- Perceived Weight and Balance – Evaluate the perceived weight and balance of the rifle; (25 points maximum)

    - Score rifles on a level of 1 to 5, with 1 being that the rifle feels extraordinarily heavy or unbalanced to 5 being that the rifle feels light and perfectly balanced. (Multiply raw score by 5 to achieve final sub-score)

- General Ergonomics – Evaluate the ergonomics of the rifle; (30 points maximum)
    - Score the ergonomics (fit and feel) of the rifle on a level of 1 to 5, with 1 being the least ergonomic and 5 being the best ergonomics. (Multiply raw score by 6 to achieve final sub-score)
- Slow Fire (Accuracy) – Evaluate the perceived accuracy of the rifle during slow fire shooting; (15 points maximum)
    - Score rifle accuracy on a level of 1 to 5, with 1 being least accurate and 5 being the more accurate. (Multiply raw score by 3 to achieve final sub-score)
- Slow Fire (Trigger Pull) – Evaluate the trigger pull weight and consistency of the rifle during slow fire shooting; (10 points maximum)
    - Score rifle trigger pull on a level of 1 to 5, with 1 being least preferred and 5 being the more preferred. (Multiply raw score by 2 to achieve final sub-score)
- Fast Fire Control – Evaluate the felt recoil, recoil management, maintainable grip, and accuracy maintained of the rifle during fast fire shooting; (20 points maximum)
    - Score rifle fast fire controllability on a level of 1 to 5, with 1 being least controllable and 5 being the most controllable. (Multiply raw score by 4 to achieve final sub-score)

At the conclusion of the User Interface Assessment, the evaluation sheets shall be submitted directly to the TEC. The TEC will process the scores as follows:

Score Conversion: For each participant, the TEC will convert the raw evaluation scores into final points using the scaling factors outlined above.
Individual Score Averaging: The TEC will calculate the average of the individual scores (C1).
Final Score Calculation: Using the formula provided (C2), the TEC will calculate a final score for each vendor.
Incorporation into Technical Evaluation: The TEC will integrate these calculated points into the final overall Technical Evaluation and User Interface Assessment criteria scoring, which has a maximum score of 100 points.
Vendor Score Aggregation: The TEC will add the scores for each rifle from all evaluations conducted. The total vendor scores for the SDR and MDR rifles from each assessor will then be combined and divided by two to determine the average vendor score.
Rounding: Any decimals in the final score will be rounded up to the nearest whole number

Formula C1

$$(2 \times SDR + MDR) / 3 = Z^{\text{Total individual points}}$$

Formula C2

$$(Z+Z+Z\ldots /24) * 100 = \text{User Interface Assessment sub-score}$$

Final Volume 1 Evaluation Scoring (Score/DQ) – This portion of the source selection shall be conducted by the TEC. The final Part B criteria sub-score shall be multiplied by a scaling factor of .55. The final user interface assessment (UIA) sub-score shall be multiplied by a scaling factor of .45. These two scores shall then be added together to achieve the final Volume 1 score for each manufacturer.

(Part B Score * .55) + (UIA Score * .45) = **Final Volume 1 Score**

At this point, vendors shall be ranked numerically from the highest score to the lowest score. Only the highest four (4) scoring vendors shall advance to Part D, the Reliability/Durability and Precision Grouping. (Should there be a tie at the fourth-place position, both vendors shall advance for a total of five (5) vendors.) The Contracting Officer shall make all necessary notifications and provide instructions to the top vendors regarding the next phase of the evaluation.

D. Technical Evaluation Volume 2, Phase 2, non-price, Part D, Score/Disqualification (Score/DQ) - This portion of the source selection shall be conducted by the TEC Post Down Select. Individual evaluations apply to each rifle type (SDR and MDR), unless specifically noted in the evaluation description. For this evaluation, the term rifle shall refer to each individually serialized rifle, unless otherwise stated. Reliability/Durability testing shall be conducted, using the following protocol:

- Rifle assemblies SDR (SOW Section 4.1.1) and MDR (SOW Section 4.1.5) shall fire a minimum of 9,600 rounds of CBP contract ammunition consisting of:
    - Federal 5.56x45mm 64GR Tactical bonded Soft Point, Z556T64XCBP (total of 8000 rounds)
    - Federal .223 REM 62GR, Tactical bonded Soft Point, Z223SP (total of 2000 rounds)
- A total of 1680 rounds from SOW section 5.6.1.a will be fired in conjunction with a suppressor. SUREFIRE SOCOM556-RC2.
- Test shall begin with the rifle cleaned and lubricated in accordance with the owner's manual.
- Firing cycle will consist of 120 rounds.
- The first 60 rounds fired at a rate of approximately 1 round per second, the second 60 rounds being fired in full auto in bursts of 3-5 rounds.
- After each 120 round firing cycle the weapon will be allowed to cool for 10 minutes.
- After every 240 rounds the weapon will be cooled to where the barrel can be held in a bare hand.
- After every 600 rounds the weapon will be wiped and lubricated without disassembly.
- After every 1200 rounds, the weapon will be disassembled, cleaned, inspected, gauged, and lubricated.
- At 4800 rounds, the weapon will be cleaned, inspected, gauged, and lubricated before performing the mid-reliability/durability accuracy grouping and degradation Test. The weapon will be cleaned and lubricated again, before commencing with the remainder of the reliabililty/durability test.
- At the conclusion of the reliability/durability test, rifles will then be inspected for wear, gauging, damage, deformation, functionality, and operability.
- The number and class of stoppages, as well as parts breakages will be evaluated and recorded at the 1200 round intervals, the 4800 round mark, and the conclusion of 9600 rounds.
- Any operator induced error, or malfunction caused by non- contract parts shall not be counted against this malfunction rate.
- Rifle shall meet the following performance standards.

- Rifle shall NOT experience any CLASS 3 MALFUNCTIONS (Parts failure or breakage which requires parts replacement to return functionality).
- Rifle may not experience greater than 0.25% CLASS 2 MALFUNCTIONS (Non-catastrophic malfunction that cannot be cleared by immediate action drill).
- Rifle may not experience greater than 1.00% CLASS 1 MALFUNCTIONS (Clearable by immediate action drill).
- All rifles must read within the acceptable levels of barrel erosion, throat erosion, head spacing in accordance with TM 9-1005-319-23&P at all points of gauging.
- Weapons must be free of unusual abnormalities in accordance with TM 9-1005-319-23&P.
- Reliability/Durability Testing (non-suppressed) – Evaluate the reliability of the SDR rifle CLASS 1 malfunctions: (200 points maximum)
    - DQ if any rifle experiences 101 or more CLASS 1 malfunctions
- Reliability/Durability Testing (non-suppressed) – Evaluate the reliability of the SDR rifle CLASS 2 malfunctions: (200 points maximum)
    - DQ if any rifle experiences 26 or more CLASS 2 malfunctions
- Reliability/Durability Testing (non-suppressed) – Evaluate the reliability of the SDR rifle CLASS 3 malfunctions: (PASS/DQ)
    - DQ if any rifle experiences 1 CLASS 3 malfunction
- Reliability/Durability Testing (non-suppressed) – Evaluate the reliability of the MDR rifle CLASS 1 malfunctions: (100 points maximum)
    - Award 0 points for 51 or more CLASS 1 malfunctions
- Reliability/Durability Testing (non-suppressed) – Evaluate the reliability of the MDR rifle CLASS 2 malfunctions: (100 points maximum)
    - Award 0 points for 19 or more CLASS 2 malfunctions
- Reliability/Durability Testing (suppressed) – Evaluate the reliability of the SDR rifle CLASS 1 malfunctions: (100 points maximum)
    - DQ if any rifle experiences 31 or more CLASS 1 malfunctions
- Reliability/Durability Testing (suppressed) – Evaluate the reliability of the SDR rifle CLASS 2 malfunctions: (100 points maximum)
    - DQ if any rifle experiences 21 or more CLASS 2 malfunctions
- Reliability/Durability Testing (suppressed) – Evaluate the reliability of the SDR rifle CLASS 3 malfunctions: (PASS/DQ)
    - DQ if any rifle experiences 1 CLASS 3 malfunction
- Reliability/Durability Testing (suppressed) – Evaluate the reliability of the MDR rifle CLASS 1 malfunctions: (50 points maximum)
    - Award 0 points for 12 or more CLASS 1 malfunctions
- Reliability/Durability Testing (suppressed) – Evaluate the reliability of the MDR rifle CLASS 2 malfunctions: (50 points maximum)

- Award 0 points for 11 or more CLASS 2 malfunctions

The TEC will use the same testing protocols from the Precision Grouping (Accuracy) Testing section of Technical Evaluation Volume 1, Phase 1, Non-Price, Part B Score/Disqualifying Criteria to conduct the midcycle and post-reliability precision grouping tests for SDR and MDR rifles.

Mid Cycle Gauge Check

Function Test 2 – Initial Gauging using CBP M4 Gauge Kit (Pacific Tool and Gauge PN 56255352

Headspace Check GO and NOGO

Firing Pin Protrusion GO and NOGO

Throat Erosion Check (with reference photo)

Firing Pin Hole NOGO

Trigger and Hammer Pin Hole NOGO

5.56mm NATO Chamber Function Check

Any weapon failing a NOGO check will be a DQ.

- Precision Grouping (MidCycle) Testing 5.56 – Evaluate the retained accuracy of the SDR at 4,800 rounds of reliability/durability testing; (120 points maximum)

  DQ if group (4 best impacts of 5 shot groups) exceeds 4.14”
- Precision Grouping (MidCycle) Testing 5.56 – Evaluate the retained accuracy of the MDR at 4,800 rounds of reliability/durability testing; (60 points maximum)
  - Award 0 points for any groups between exceeding 4.01”
- Precision Grouping (MidCycle) Testing .223 – Evaluate the retained accuracy of the SDR at 4,800 rounds of reliability/durability testing; (60 points maximum)
  - DQ if group (4 best impacts of 5 shot groups) exceeds 4.14”
- Precision Grouping (MidCycle) Testing .223 – Evaluate the retained accuracy of the MDR at 4,800 rounds of reliability/durability testing; (30 points maximum)
  - Award 0 points for any groups exceeding between 4.01”

Final Gauge Check

Function Test 2 – Initial Gauging using CBP M4 Gauge Kit (Pacific Tool and Gauge PN 56255352

Headspace Check GO and NOGO

Firing Pin Protrusion GO and NOGO

Throat Erosion Check (with reference photo)

Firing Pin Hole NOGO

Trigger and Hammer Pin Hole NOGO

5.56mm NATO Chamber Function Check

Any weapon failing a NOGO check will be a DQ.

- Precision Grouping (Final) Testing 5.56 – Evaluate the inherent accuracy of the SDR rifle post reliability/durability testing; (120 points maximum)

  - DQ if group (4 best impacts of 5 shot groups) exceeds 5.00”

- Precision Grouping (Final) Testing 5.56 – Evaluate the inherent accuracy of the MDR rifle post reliability/durability testing; (60 points maximum)
  - Award 0 points for any groups exceeding 4.51”
- Precision Grouping (Final) Testing .223 – Evaluate the retained accuracy of the SDR post reliability/durability testing; (60 points maximum)
  - DQ if group (4 best impacts of 5 shot groups) exceeds 5.00
- Precision Grouping (Final) Testing .223 – Evaluate the retained accuracy of the MDR post reliability/durability testing; (30 points maximum)
  - Award 0 points for any groups exceeding 4.51”
- Frangible Ammunition Compatibility Testing – Evaluate the compatibility of the SDR with frangible ammunition CLASS 1 malfunctions: (50 points maximum)
  - Award 0 points for 12 or more CLASS 1 malfunctions
- Frangible Ammunition Compatibility Testing – Evaluate the compatibility of the SDR with frangible ammunition CLASS 2 malfunctions: (50 points maximum)
  - Award 0 points for 11 or more CLASS 2 malfunctions
- Frangible Ammunition Compatibility Testing – Evaluate the compatibility of the SDR with frangible ammunition CLASS 3 malfunctions: (PASS/DQ)
  - DQ if any rifle experiences 1 CLASS 3 malfunction
- Frangible Ammunition Compatibility Testing – Evaluate the compatibility of the MDR with frangible ammunition CLASS 1 malfunctions: (25 points maximum)
  - Award 0 points for 12 or more CLASS 1 malfunctions
- Frangible Ammunition Compatibility Testing – Evaluate the compatibility of the MDR with frangible ammunition CLASS 2 malfunctions: (25 points maximum)
  - Award 0 points for 11 or more CLASS 2 malfunctions

Technical performance criteria sub-scoring Part C (100 Max Score); Add up the total points earned, divided by the total possible points, then multiplied by 100 to achieve the technical performance score This number should then be used as the Phase II performance score (shown below in B2). All decimals on the final score shall be rounded up to the next whole number.

Formula B2

$({}^{XXXX}/_{1590}) \times 100$ = Final Score Phase II

Final Technical Evaluation Scoring (Score/DQ); Add up the Final Score Phase I (Part B) to the Final Score Phase II (Part C), then divide the total by 2. This number should then be used as the Final Technical Evaluation Score (shown below in B3). All decimals on the final score shall be rounded up to the next whole number.

Formula B3

Final Score Phase I (Part B/Part C (UIA)) + Final Score Phase II (Part D) / 2 = **Final Technical Evaluation Score**

Volume III – Price Proposal, Phase 2

- Complete blocks 12, 17a, and 30a, b, and c of the SF1449. In doing so, the Offeror agrees to the contract terms and conditions as written in the solicitation with attachments. The solicitation constitutes the model contract. Additionally, the offeror shall acknowledge all amendments issued.
- The offeror shall outline and explain any deviations, exceptions, or conditional assumptions taken to the requirements of this solicitation. Sufficient amplification and justification to permit evaluation must support any deviations, exceptions, or conditional assumptions.

  To the extent that there is any inconsistency between the terms and conditions of the solicitation and those proposed by the offeror, which inconsistency has not been clearly disclosed to the Government by the offeror, the Government's terms and conditions shall control in the event that a contract is awarded. Any exceptions or deviations may make the offeror ineligible for award.

- Complete Attachment 2 "Pricing Schedule." The total evaluated price, for award purposes, will be comprised of the items listed in the shaded area (lines 7–17) of Attachment 2 - Price Sheet.

  In accordance with FAR 15.404-6, Unbalanced Pricing, a proposal may be rejected if the Contracting Officer determines the lack of balance poses an unacceptable risk to the Government.

  DO NOT RE-FORMAT THE ATTACHMENT 2 PRICE SHEET.

---

5. **GENERAL PROPOSAL INFORMATION**

Failure of an offeror to address any items listed in FAR 52.212-1 and this addendum may make the offer unacceptable and may result in it not being considered for award.

- Offer shall remain firm for at least **60 calendar days**.
- Offerors shall deliver their proposals (Volumes I, III, and IV) to the locations detailed above in Section 2 of this solicitation.
- Each volume shall be its own separate and individual attachment submitted with the proposal.

FAILURE TO COMPLY WITH THESE INSTRUCTIONS MAY BE GROUNDS FOR EXCLUSION OF THE PROPOSAL FROM FURTHER CONSIDERATION.

(End of provision)

III.11 52.212-2 EVALUATION – COMMERCIAL PRODUCTS and COMMERCIAL SERVICES (AUG 2025) (DEVIATION 25-21)

(a) *Evaluation factors*. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers: **See *Addendum to 52.212-2**

(b) *Options (if applicable).* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

III.12*Addendum to 52.212-2 EVALUATION – COMMERCIAL PRODUCTS and COMMERCIAL SERVICES

BASIS FOR AWARD

The Government will award a single Indefinite Delivery Indefinite Quantity (IDIQ) contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation is determined to be the best value to the Government, technical, price, and other factors considered.

- The Government reserves the right to make an award to other than the lowest priced Offeror.
- The Government intends to evaluate proposals and award a contract without competitive negotiations with offerors (except clarifications as described in FRO 15.202(a)(2)).
- Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint.
- The Government reserves the right to conduct competitive negotiations if the Contracting Officer later determines them to be necessary.
- If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit efficient competition among the most highly rated proposals.

Evaluation Factors

The major evaluation factors for this solicitation are:

- Volume I: Technical Proposal (Phase 1) (Non-Price)
    - Part A – Pass/Disqualification
    - Part B – Score / Disqualification Performance Criteria (trigger pull/accuracy)
    - Part C – User Interface Assessment
- Volume I: Technical Proposal (Phase 2) (Non-Price)
    - Part D – Score / Disqualification Performance Criteria (reliability/durability/accuracy/accuracy degradation)
- Volume II: Price (Phase 2)

*** To streamline the evaluation process, there will be a **mandatory down select** between Part C and Part D. Only the top highest four (4) scoring vendors, inclusive of a tie, shall advance to Part D. If all advancing four (4) vendors are disqualified during Part D, the next highest two (2) scoring vendors from Part C shall advance to perform Part D to determine award. This shall continue in turn until either all offers are disqualified or at least one is qualified under Part D.

Technical Capability will be evaluated by the TEC. Pricing will be evaluated by the PEC. The mechanism for evaluation of the factors as shown above is as follows.

The final technical evaluation score, along with its respective price analysis, will be used to determine the overall evaluation for each offeror. Any finding of “DQ” may remove the offeror from consideration for award.

Relative Importance of Factors

The solicitation provides the following information to help Offerors gain a better understanding of how CBP will evaluate and consider the Offerors’ proposals:

“The Government will award contract(s) resulting from this solicitation to the responsible offeror(s) whose offer conforming to the solicitation is determined to be the best value to the Government, technical, price and other factors considered. The Government reserves the right to make an award to other than the lowest priced offeror. The Government also reserves the right to award a contract based upon initial offers. If the Government determines competitive negotiations are required, the Contracting Officer may determine that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted. The Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. Therefore, the offeror’s initial proposal should contain the offeror’s best terms from a price and technical standpoint. The Government intends to make a single award resulting from this solicitation.

Additionally, the Government reserves the right to conduct a pre-award survey of the potential successful offerors.

The non-price factors when combined are significantly more important than Price.

The Complete Evaluation Criteria are outlined in Addendum to 52.212-1, Instructions to Offerors. Each factor and sub-factor will be evaluated by members of the applicable team (TEC or PEC).

III.13 52.215-1 INSTRUCTIONS to OFFERORS--COMPETITIVE ACQUISITION (OCT 2025) (DEVIATION 26-08)

(a) *Definitions*. As used in this provision --

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the request for proposal closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to material elements of a proposal made after the request for proposal closing date, at the request of or as allowed by a Contracting Officer, as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to requests for proposals*. If this request for proposal (RFP) is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this RFP by the date and time specified in the amendment(s).

(c) *Submission, modification, revision, and withdrawal of proposals*.

(1) (i) Proposals and modifications to proposals shall be–

(A) Submitted using the method and the format specified in the RFP;

(B) Addressed to the office specified in the RFP; and

(C) Showing the time and date specified for receipt, the RFP number, and the name and address of the offeror.

(ii) Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i)(B) and (C) of this provision.

(2) The first page of the proposal must show –

(i) The RFP number;

(ii) The name, address, and telephone number of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the RFP and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone number (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this RFP; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) (i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the RFP by the time specified in the RFP. If no time is specified in the RFP, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii) (A) Any proposal, modification, or revision received at the Government office designated in the RFP after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the RFP, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the RFP, and urgent Government requirements preclude amendment of the RFP, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the RFP on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral RFPs may be withdrawn orally. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the RFP, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this RFP in English, unless otherwise permitted by the RFP, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the RFP.

(6) Offerors may submit modifications to their proposals at any time before the RFP closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date*. Proposals in response to this RFP will be valid for the number of days specified on the RFP cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data*. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

Mark the title page with the following legend: This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed–in whole or in part–for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) *Contract award*.

(1) The Government intends to award a contract or contracts resulting from this RFP to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the RFP.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without negotiations with offerors (except clarifications as described in FAR 15.202(b)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct negotiations if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly evaluated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(8) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(9) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(10) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weaknesses or deficiencies in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the RFP, applicable regulations, and other applicable authorities were followed by the agency.

(vii) For DoD contracts in excess of $10 million but not in excess of $100 million with a small business or nontraditional defense contractor (10 U.S.C. 3014), an option for the contractor to request disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(viii) For award of a DoD contract in excess of $100 million, disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(End of provision)

III.14 52.216-1 TYPE OF CONTRACT (OCT 2025) (DEVIATION 26-04)

The Government contemplates award of a Firm-Fixed-Price Indefinite Delivery Contract resulting from this solicitation. Delivery Orders against the contract will be firm fixed price.

(End of provision)

III.15 52.225-2 BUY AMERICAN CERTIFICATE (OCT 2022)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105)

(4) The terms “*commercially available off-the-shelf (COTS) item*,” “*critical component*,” "*domestic end product*," "*end product*," and "*foreign end product*" are defined in the clause of this solicitation entitled "*Buy American-Supplies*."

(b) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(c) Domestic end products containing a critical component:

Line Item No. ___ *[List as necessary]*

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

III.16 52.233-2 SERVICE OF PROTEST (AUG 2025) (DEVIATION 25-25)

(a) *Protests*, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

III.17 52.233-2 SERVICE OF PROTEST (AUG 2025) (DEVIATION 25-25)

(a) *Protests*, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

III.18 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (AUG 2025) (DEVIATION 25-23)

(a) *Definitions*. As used in this clause–

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and *substantial or essential component* have the meanings provided in the clause *52.240-91, Security Prohibitions and Exclusions*.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means–

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate–

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology–

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically–

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) Covered telecommunications and video surveillance. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) FASCSA Orders.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e)(1) of FAR *52.240-91, Security Prohibitions and Exclusions*.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit) –

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer–

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if–

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

III.19 AGENCY LEVEL PROTEST NOTICE (APR 2003)

Offerors are notified that per FAR 33.103(d)(4), an independent review of the grounds for a protest is available at a level above the contracting officer as an alternative to the protest to the agency contracting officer, not as an additional appeal after the protest to the agency contracting officer has been resolved. A choice to protest to the agency contracting officer therefore relieves the U.S. Customs & Border Protection of any further internal review or appeal after the contracting officer's decision.

[End of Provision]

III.20 GENERAL EVALUATION INFORMATION (OCT 2008)

In addition to the specific evaluation criteria contained in the provision entitled "EVALUATION CRITERIA" or the provision entitled "BASIS FOR AWARD (LOWEST EVALUATED PRICE TECHNICALLY ACCEPTABLE SOURCE SELECTION)" in this solicitation, the Contracting Officer will consider the following additional factors in the source selection process.

a. The offeror must respond to all of the requirements of the solicitation, and must include in his proposal all information specifically required in all sections of the solicitation.

b. Award of a contract may not be made to any offeror unless an agreement can be secured for all stated terms, conditions, representations, certifications, and all other information required by the solicitation.

c. Award of a contract can only be made to an offeror:

1. Whose proposal is technically acceptable or represents best value;
2. Whose proposed cost/price is determined reasonable; and
3. Who is considered to be responsible within the meaning of FAR 9.104.

The Government will use the Contractors Performance Assessment Reporting System (CPARS) (https://www.cpars.gov) and other available sources to obtain contractor past performance data for consideration in the evaluation process. The Government will determine the relevance of similar past performance information to the instant acquisition.

In the case of an offeror without a record of relevant past performance, or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance.

[End of Provision]

III.21 EVALUATION CRITERIA (JUN 2007)

Major categories considered in the evaluation of proposals are as follows:

TECHNICAL (NON-PRICE)

This group of non-price factors/subfactors has a potential total point score rating of (See Addendum to 52.212-1).

PRICE

The price proposal will be evaluated for reasonableness. A point score rating will not be used.

An evaluation team has been established by the U.S. Customs and Border Protection to rate the technical proposals (i.e., those major categories listed above as “non-price”). Each member of the team will evaluate each proposal in accordance with the evaluation factors/subfactors stated below to determine if the proposal is acceptable. Full and impartial consideration will be given to all offers received pursuant to this solicitation, and the evaluation process will be conducted in an equal manner.

Evaluation of the “Technical” portion of the proposal will be based on the following factors/subfactors:

See Addendum to 52.212-2

A separate evaluation team has been established to evaluate the price proposal. The evaluation will be conducted as detailed in the provision entitled "PRICE EVALUATION" contained in this solicitation and ADDENDUM TO 52.212-1.

Also see provisions entitled “RELATIVE IMPORTANCE OF EVALUATION FACTORS” and “BASIS OF AWARD (TRADE-OFF ANALYSIS)” contained in this solicitation.

[End of Supplementary Terms and Conditions]

III.22 PRICE EVALUATION (AUG 2022)

Separately and apart from the technical evaluation, the Government will conduct a cost and/or price evaluation of the offeror's cost/price proposal. A price analysis will be conducted to determine if proposed prices are fair and reasonable.

[End of Supplementary Terms and Conditions]

III.23 BASIS OF AWARD (TRADE-OFF ANALYSIS) (JUN 2007)

Award shall be made to the offeror(s) whose proposal(s) are determined to best meet the needs of Government after consideration of all factors-- i.e., provides the "best value". "Best value" is defined here as the procurement process that results in the most advantageous acquisition decision for the Government and is performed through an integrated assessment and trade-off analysis among cost or price and non-cost or non-price factors.

The basis for the award of a contract as a result of this Request for Proposal (RFP) will be a detailed, integrated evaluation by the Government on the basis of how well the proposals satisfy the evaluation criteria contained in the provision entitled "Evaluation Criteria" in this solicitation. Accordingly, the Government may award any resulting contract to other than the lowest priced offeror(s) or other than the offeror(s) with the highest technical merit rating.

The Contracting Officer or Source Selection Authority has the right to determine whether two or more technical proposals are "substantially equal" or whether any differences in technical weighing are "significant" for purposes of evaluating the overall merit of proposals. Between proposals of substantially equal technical merit, cost/price will become a more significant factor.

Between competing proposals, the Government is not willing to pay significantly more for a minor technical difference, nor is the Government willing to forego a significant technical difference in exchange for a small cost/price differential.

See the provision entitled "Relative Importance of Evaluation Factors" contained in this solicitation.

[End of Provision]

III.24 RELATIVE IMPORTANCE OF EVALUATION FACTORS (JUN 2007)

Award will be made to that responsible offeror whose proposal provides the combination of criteria offering the best overall value to the Government.

For this solicitation, the major evaluation factors are

- Technical (Non-Price)

- Price

All evaluation factors/subfactors contained under the major categories identified above as "Non-Price" (see provision entitled "Evaluation Criteria" contained in this solicitation), when combined, are significantly more important than Price. The Government is more concerned with obtaining superior technical/performance capability (represented by the non-price evaluation categories) than with making an award at the lowest overall evaluated price. However, if the technical/performance aspects of competing proposals are determined to be essentially equivalent, the evaluated price may become the determining factor for award. The determination that technical/performance aspects are essentially equal is within the discretion of the source selection official.

[End of Provision]